

IN THE UNITED STATES COURT
MIDDLE DISTRICT OF FLORIDA

Tampa Division

DAVIS MATTHEW,

Plaintiff,

v.

PASCO COUNTY FLORIDA,

Defendants.

Case No.:

Complaint

COMPLAINT FOR CONSTITUTIONAL VIOLATION OF

CIVIL RIGHTS AND RELATED CRIMES.

42 U.S.C. § 1983, 18 U.S.C. § 241,242 and 245

Respectfully submitted,

Matthew Aaron Davis

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Date: January 12, 2025.

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 3. *Kelo v. City of New London*, 545 U.S. 469 (2005)
 4. *Loretto v. Teleprompter Manhattan CATV Corp.*, 458 U.S. 419 (1982)
 5. *Ziglar v. Abbasi*, 582 U.S. (2017)
 6. *Hope v. Pelzer*, 536 U.S. 730 (2002)
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 9. *Moore v. City of East Cleveland*, 431 U.S. 494 (1977)
 10. *Whiteley v. Warden*, 401 U.S. 560 (1971)
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 12. *Stanley v. Illinois*, 405 U.S. 645 (1972)
 13. *Lassiter v. Department of Social Services*, 452 U.S. 18 (1981)
 14. *Albright v. Oliver*, 510 U.S. 266 (1994)
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 18. *Devereaux v. Abbey*, 263 F.3d 1070 (9th Cir. 2001)
 19. *Hartman v. Moore*, 547 U.S. 250 (2006)
 20. *United States v. Goodwin*, 457 U.S. 368 (1982)
 21. *Yick Wo v. Hopkins*, 118 U.S. 356 (1886)
 22. *Jones v. City of Chicago*, 856 F.2d 985 (7th Cir. 1988)

23. *Christopher v. Nestlerode*, 373 F.3d 931 (8th Cir. 2004)
24. *Rochin v. California*, 342 U.S. 165 (1952)
25. *Graham v. Connor*, 490 U.S. 386 (1989)
26. *Laird v. Tatum*, 408 U.S. 1 (1972)
27. *Lo-Ji Sales, Inc. v. New York*, 442 U.S. 319 (1979)
28. *Bradley v. McKinney*, 484 F.2d 1368 (9th Cir. 1973)
29. *Beard v. United States*, 158 U.S. 550 (1895)
30. *United States v. McDonald*, 620 F.2d 559 (5th Cir. 1980)
31. *Jackson v. Denno*, 378 U.S. 368 (1964)

Federal Question

Question 1 - Does the concurrent use of a child dependency proceeding and a criminal investigation, targeting a parent without clear and convincing evidence of wrongdoing, violate the Due Process Clause of the Fourteenth Amendment by unjustly depriving the parent of custody of their children, while also breaching the parent's constitutional right to be free from malicious prosecution under the Fourth and Fifth Amendments?

Furthermore, does the use of concurrent investigations, in conjunction with allegations of systemic discrimination and investigational harassment, constitute a violation of federally protected rights under *42 U.S.C. § 1983*, including the right to familial association and protection from abuse of government authority?

Question 2 - If it is considered our, as United States citizens, civic duty to know and abide by the laws that govern us, why is basic legal knowledge such as understanding the court system, legal motions, due process, and how to assert our rights not a fundamental part of the grade school curriculum in the United States of America as they are both mandatory knowledge and are suppose to be used to ensure justice?

We as United States citizens are not taught the practical tools needed to defend ourselves when law enforcement or government entities break the law. As citizens, we are expected to navigate a complex legal system without any formal education on how to challenge wrongful actions by government officials, protect our civil rights, or utilize legal mechanisms like Title *42 U.S.C. § 1983* to hold those in power accountable, yet it is our punishment when individuals in power break them?

Had I known even the basics of how to fight back against unlawful arrests, biased investigations, or due process violations, my family would still be here today. Instead, the lack of education on how to stand up for our rights left me unprepared to defend myself and my family from years of legal abuse and constitutional violations. Left solely on the expectation that people will do the right thing, when our families', children's, entire lives are weighted against a paycheck of others. As follows...

THE UNITED STATES DISTRICT COURT

MIDDLE DISTRICT OF FLORIDA

Tampa Division

DAVIS MATTHEW,

Plaintiff,

v.

PASCO COUNTY FLORIDA,

Defendant.

Case No.: 8:24-cv-02907

Complaint

COMPLAINT FOR CONSTITUTIONAL VIOLATION OF
CIVIL RIGHTS AND RELATED CRIMES.

42 U.S.C. § 1983, 18 U.S.C. § 241, 242 and 245

I. Introduction

Plaintiff, Matthew Aaron Davis, files this suit under Title 42, Statue 1983 and Title 18, Statue 241, 242 and 245. Defendant, Pasco County, is a political subdivision of the State of Florida, and at all relevant times, acted under color of state and federal law. Plaintiff is seeking redress for Constitutional violations by Pasco County and punishment for conspiracy to commit constitutional violations by officials of Pasco County based on discrimination and monetary gains. At the cost of many united estates within the United States of America.

II. Jurisdiction and Venue

1. This Court has jurisdiction under *28 U.S.C. § 1331*, which grants district court's authority over civil actions arising under the Constitution, laws, of the United States.
2. This Court also has jurisdiction under *28 U.S.C. § 1343(a)(3)* and (4), which applies to cases seeking redress for the deprivation of civil rights.
3. Plaintiff brings this action under *42 U.S.C. § 1983* to address violations of rights protected by the Constitution and federal law and venue is proper in the Middle District of Florida under *28 U.S.C. § 1391(b)*, as a a substantial part of the events giving rise to the claim occurred in this district.
4. Plaintiff brings this action under *18 U.S.C. § 241* for conspiracy to commit constitutional violations by public officials. Also brings this action under *18 U.S.C. §242* for justice for constitutional violations that where made under color of law based on discrimination as defined in *18 U.S.C. § 245*. The Middle District is proper venue as all events arises in this district.

III. Parties

5. Plaintiff: Matthew Aaron Davis, former Pasco County, Public Works, First Responder (12403), currently residing at 4624 Charter St. Zephyrhills, FL 33542. Within the Middle District.
6. Defendant, Pasco County, Florida, is a political subdivision of the State of Florida, and at all relevant times, acted under color of state law and threw it's officials, are responsible for any and all actions taken from it's governing agencies and accomplices. Legally represented by the Pasco County Attorney located at
.

IV. Timeline Of Events.

7. Starting in 2017, when the Plaintiff and his family settled in Zephyrhills, Florida, they were subjected to nearly three years of continuous investigations based on false reports and allegations of child abuse. Despite the repeated claims, every investigation conducted by the Department of Children and Families (DCF) concluded with no findings. As defined in *Dupuy v. Samuels*, 2002 WL 435683 (N.D. Ill. 2002) that addresses child welfare investigations and sets boundaries on how state agencies like DCF (Department of Children and Families) can conduct investigations, particularly multiple or back-to-back investigations that may amount to harassment.
8. This included the unwarranted questioning of the children at their school and daycare, without the parents' consent or knowledge. As addressed in *Doe v. Heck*, 327 F.3d 492 (7th Cir. 2003) the Seventh Circuit held that social workers violated the Fourth Amendment rights of a child and her family by interviewing the child at school without parental consent.
9. In mid 2019 the mother of the Plaintiff's children, who lived in their family home (11 years at the time), arrived after a nine month incarceration period. The family was met by the Department of Children and Families (DCF) three months after release accompanied by the Pasco County Sheriff Department demanding that the mother leave the home, whereas she was on the rent to own the lease and half owner of the home or they would remove the children from the Plaintiffs full custody. This illegal threat by law enforcement is thoroughly covered in *Kelo v. City of New London*, 545 U.S. 469 (2005) and *Loretto v. Teleprompter Manhattan CATV Corp.*, 458 U.S. 419 (1982) reinforces the principle that even minimal interference with property rights can constitute a

constitutional violation. Forcing a homeowner to leave their residence can be seen as a significant interference with their property rights, requiring legal justification.

10. For the next year and a half Plaintiff's family was constantly harassed by DCF and Pasco County Sheriff. Plaintiff's small family had to hide the mother for fear of their family being ripped apart if she was found living in their family home. As the Pasco County Sheriff had instituted their own unconstitutional punishment on the mother of the children in common with the Plaintiff from her recent incarceration. To be driven into criminalized society to gain intel for law enforcement as a "slave" The Sheriff Department overstepped their boundaries as a arresting officer now believes he is judge, jury and executioner as in the case of *Ziglar v. Abbasi*, 582 U.S. (2017) this case emphasizes the importance of separation of powers and the judiciary's role in sanctioning or addressing conduct. It reinforced that law enforcement cannot take unilateral actions that amount to punishment without judicial oversight. Furthermore in *Hope v. Pelzer*, 536 U.S. 730 (2002) The Supreme Court found that punitive measure violated the Eighth Amendment. This case reinforced that state actors, including law enforcement, cannot impose punishments that are not sanctioned by the court.
11. Plaintiff argued the legalities on a monthly basis with Judge Magistrate, DCF representative and counsel at the Sixth Judicial Circuit Court in and of Pasco County Florida on conference calls. Each stated that the children would be removed if the mother was caught at her own family's home where she would be half owner when balance was paid in full on rent to own lease. This is a fundamental core of our nation's birth as in *Lawrence v. Texas*, 539 U.S. 558 (2003) This case reinforced the right to privacy within one's home under the Due Process Clause of the 14th Amendment. The U.S. Supreme

Court ruled that the government cannot intrude into private, consensual relationships within a home, affirming the right to make personal decisions without interference from law enforcement. Also in *Griswold v. Connecticut*, 381 U.S. 479 (1965) This landmark case established the constitutional right to privacy, particularly within the home, by protecting decisions made by individuals concerning their family and household. Again in *Moore v. City of East Cleveland*, 431 U.S. 494 (1977) In this case, the Supreme Court struck down a housing ordinance that limited the types of family members who could live together, citing the right of families to live together as a family should.

12. On or about December 9, 2020, around 6pm the Plaintiff arrived home where his fiancée and their children in common resided at, 6819 23rd St Zephyrhills, Florida 33542. He was arrested for domestic battery (case 512020MM004755MMAXES Sixth Judicial Circuit in and of Pasco County Florida). Based on nothing but hearsay making it a false arrest as in *Whiteley v. Warden*, 401 U.S. 560 (1971) the Court held that an arrest based on a warrant issued without probable cause, which relied solely on hearsay, was unconstitutional. Hearsay alone, without a factual basis to support probable cause, cannot justify an arrest or warrant.
13. As the Plaintiff had full custody of the children they were immediately removed by the Department of Children and Families (DCF) in case number 512020DR005966DRAXES Sixth Judicial Circuit Court in and of Pasco County Florida stating “failure to protect children from domestic violence”. Without the Plaintiff's wishes of his children's whereabouts being taken into consideration. (This false arrest was the first step in the systematic human trafficking process done by Pasco County, Florida.) In *Troxel v. Granville*, 530 U.S. 57 (2000) this case reinforced parental rights as a fundamental

liberty interest protected by the Due Process Clause of the 14th Amendment. Removing children from a parent's custody requires more than vague or hearsay allegations. Also a parents choice of where their children will go is fundamental even if the parent is unable to provide residential custody. *Stanley v. Illinois*, 405 U.S. 645 (1972) also expresses how the Supreme Court ruled that parents cannot be deprived of custody of their children without a hearing on their fitness as parents. Hearsay or unverified information cannot justify removal without proper due process.

14. Plaintiff was released from jail on December 12 2020 after posting a \$500 bond and immediately went to pick up his children. He was met with retaliation by the maternal great grandparents who and the police were dispatched. Plaintiff was then threatened with charges of kidnapping if he was to take his children back to their family home as the Department of Children and Families (DCF) continued with prosecution. He was given paperwork that the mother and maternal great grandparents signed stating that the Plaintiff who is the father is “ ... acting in ways that have harmed the child or will harm the child.”. As in *Lassiter v. Department of Social Services*, 452 U.S. 18 (1981) underscores the importance of procedural due process in parental rights cases. Evidence, not mere allegations, is required to protect due process rights.
15. On February 11 2021 the criminal battery charges were dropped as “no information” was filed by the States Attorney in Pasco County Florida and the domestic battery case was closed. This is covered under *Albright v. Oliver*, 510 U.S. 266 (1994) if someone is arrested without probable cause and charges are not filed, it could be a violation of the Fourth Amendment and *Manuel v. City of Joliet*, 137 S. Ct. 911 (2017) whereas his case

held that a claim for unlawful detention based on lack of probable cause could continue under the Fourth Amendment.

16. In March 2021, during the first child dependency hearing (case 512020DR005966DRAXES Sixth Judicial Circuit Court in and of Pasco County Florida) four months after removal of the children. Plaintiff questioned the legalities around the removal of his children being that the charges were dropped of domestic violence and how the fruit from the poisonous tree doctrine should apply. After being denied, whereas a part of the *Bipartisan Budget Act of 2018* the *Families First Prevention Services Act* should have returned the children and ended the child dependency case. As removal of children is a last resort after every service should be offered to keep families together. Also in *Tenenbaum v. Williams*, 193 F.3d 581 (2d Cir. 1999): The court ruled that seizing a child without a court order or exigent circumstances violates the Fourth Amendment.
17. Plaintiff was told he would have to complete parenting classes to regain custody of his children. Plaintiff presented evidence of completing two parenting classes, anger management class and a divorce class through the Department of Children and Families (DCF) website between the time of removal of the children and first hearing. These classes are advertised by DCF as “nationally court approved classes”. The Honorable Judge refused to recognize these certifications and mandated that Plaintiff retake the classes through Pasco County Florida, prolonging the separation from his children and the very denial of evidence of a higher entity as in *Brady v. Maryland*, 373 U.S. 83 (1963), whereas valuable tangible evidence was withheld that was in the Plaintiffs favor. Not to mention the *Supremacy Clause* (U.S. Constitution, Article VI) The Supremacy

Clause establishes that federal law takes precedence over state or local law when the two conflict. In matters of anything.

18. Also in March 2021, Plaintiff was arrested on charges of burglary, fraud, and dealing in stolen property (Case No. 512021CF001143CFAXES Sixth Judicial Circuit Court in and of Pasco County Florida) and placed under a state's attorney investigation. Resulting from a fabricated complaint from a tourist living in Kentucky with family ties to law enforcement in Pasco County Florida. In the case of *Devereaux v. Abbey*, 263 F.3d 1070 (9th Cir. 2001) Police officers violate constitutional rights when they fabricate evidence or coerce witnesses in criminal investigations and in *Whiteley v. Warden*, 401 U.S. 560 (1971) states arrests or charges based solely on unsubstantiated or fabricated police reports are unconstitutional. Probable cause must be supported by reliable evidence or information.
19. The complaint affidavit stated it had been filed on November 22, 2020. Much to his surprise because he had been working on that house everyday since he started the job in October 2020 and ended in mid January 2021. The home was sold on February 11 2021 and arrest was made in March 2021. Plaintiff was waiting for his payment for the work he had done and was never paid. Plaintiff believes this questionable arrest was to justify a state's attorney investigation to run concurrently with the newly initiated child dependency case and control his life to guarantee the loss of custody of his children permanently. The case of *Hartman v. Moore*, 547 U.S. 250 (2006) and in *United States v. Goodwin*, 457 U.S. 368 (1982) explains how prosecutorial retaliation, including initiating criminal charges to manipulate another legal process, can violate due process. After not pursuing charges on the domestic battery case where the Plaintiff's children

were illegally removed this arrest was made to initiate an investigation. Keeping his life in disarray.

20. Plaintiff's co-defendant, the mother of his children, was later arrested for the same burglary complaint on March 21, 2021. One day before the Plaintiff was released from incarceration and placed, solely, under a State's Attorney investigation. Making the parents of the children serving alternating incarceration periods further separating the family ties. The State's Attorney Investigation was made to run exactly concurrent with the child dependency case for their children whom he had sole custody of. Both child dependency case and investigation commencing in March 2021. *Yick Wo v. Hopkins*, 118 U.S. 356 (1886) shows that his landmark case held that laws, while neutral on their face, cannot be enforced in a discriminatory manner. If two people are similarly situated and only one is investigated without justification, it could be a violation of equal protection. Also in *Albright v. Oliver*, 510 U.S. 266 (1994), the Supreme Court emphasized that criminal charges must be supported by probable cause and should not be used maliciously or improperly. The Court recognized the protection against malicious prosecution under the Fourth Amendment and due process, emphasizing that charges cannot be used for purposes other than enforcing criminal laws. The case supports the position that criminal charges cannot be filed solely to initiate a state's attorney investigation or other proceedings that serve ulterior purposes.
21. Throughout the States Attorney Investigation gangstalking and social-gorilla warfare tactics were deployed. The Plaintiff, a First Responder for Pasco County Public Works on inactive status. His reputation was slandered to stop any new support networks from arising and caused widespread hate due to character assassination. Plaintiff's life was

dramatically changed by means of an informal group social control. Much like *Jones v. City of Chicago*, 856 F.2d 985 (7th Cir. 1988) his case involved police misconduct and character assassination, where false evidence and defamation were used to damage the reputation of a plaintiff, ultimately impacting their professional and personal life

22. As known criminals and people recently released from prison were employed to isolate and make him guilty by association. Fabricating an image of his life that was completely alien to the way his family life was. For exchange of a blind eye from law enforcement or gifts of monetary value to include cars, boats and trailers. This is show in the case of *Christopher v. Nestlerode*, 373 F.3d 931 (8th Cir. 2004) depicts this case involving a civil rights claim under 42 U.S.C. § 1983 where law enforcement officers were accused of using a criminal informant to engage in actions that violated the plaintiff's constitutional rights. As gangstalkers are composed of the common citizens being directed by police with investigational technology.
23. While being electronically harassed during this time several threats were made to the Plaintiffs in regards to his family's safety and extensive multiple attempts on the Plaintiffs life were made. These threats where followed by an extreme car accident where all three of the Plaintiffs' children were involved and airlifted to various hospitals to fight for their lives. All survived but his youngest child suffered permanent irreparable physical damage to her eyesight and face. (Plaintiff believes the Pasco County Sheriff "Predictive Policing System" may be of interest in this incident.) As defined in *Rochin v. California*, 342 U.S. 165 (1952) states government conduct that "shocks the conscience" violates the Fourteenth Amendment's due process clause. Threats or actions harming a person's children to coerce a plea deal would likely "shock the conscience" and be

unconstitutional. Also *Graham v. Connor*, 490 U.S. 386 (1989) Excessive force or harm by law enforcement is assessed under the Fourth Amendment's "objective reasonableness" standard. If law enforcement physically harmed or endangered children as a retaliatory act, it would likely constitute excessive force and violate constitutional rights.

24. At that time the Plaintiffs soon to be brother-in-law Master Sergeant Dean Marshall Hills Jr US Military retired with a lot of enemies after 36 years of service in the Marine Corps. Plaintiff reached out to him for help during this time of extreme terror and threat to his family's life. Only to be met with retaliation. This created a sense of constant fear resulting in post traumatic stress syndrome (PTSD). The use of these tactics of war during a investigation is explained in the *Posse Comitatus Act (1878)* in case *Laird v. Tatum*, 408 U.S. 1 (1972) which prohibits military involvement in civilian matters. This case involved military surveillance of civilian activities and by Plaintiff being illegally monitored before, during and after the investigation by military active duty personnel. Also to include the illegal war tactics deployed of defamation, misinformation and extortion.
25. In December 2021, Plaintiff lost full custody of his children entirely due to his inability to complete the mandated classes a second time through Pasco County while under investigation by the State Attorney's Office that created a life of disruption, fear and constant conflict making it impossible to complete the child dependency case. Resulting in the permanent loss of custody and human trafficking of the Plaintiffs children. This is explained to be similar to *Lo-Ji Sales, Inc. v. New York*, 442 U.S. 319 (1979) which shows how law enforcement officers conducted an investigation in such an arbitrary and

overbroad manner that it violated the Fourth Amendment. The investigators' actions were so excessive and invasive that they amounted to harassment.

26. With the ongoing terroristic ongoing States Attorney investigation continuing. Plaintiff received threats from police officers of being incarcerated for life if he didn't sign a guilty plea or he would be killed before he ever goes to trial. This was documented with the FBI as the Pasco County Sheriff refused to take the report. A report of derelict of duty was also filed with the FBI. *Bradley v. McKinney*, 484 F.2d 1368 (9th Cir. 1973) the Ninth Circuit Court of Appeals ruled that threats and intimidation by law enforcement officers in connection with a defendant's decision to enter a guilty plea can invalidate the plea..
27. On July 29, 2022, Plaintiff was shot by a felon with a gun. Twice above the waist, in the front of his body. At his legal residence while protecting his personal property. He was then airlifted to the Hudson Hospital by helicopter where he was arrested by Pasco County Sheriff officers Mike Toczykowski Lead Detective, who was later forced to resign, for two counts of aggravated assault. Florida state Castle Doctrine and the Stand Your Ground laws not only made the Plaintiff the victim but also in *Beard v. United States*, 158 U.S. 550 (1895) this case upheld the principle that a person is not required to retreat when they are on their own property and can defend themselves if confronted with a serious threat.
28. Two hundred fifty five days later Plaintiff was notified as his best interest is to sign a guilty plea on all five felonies, Plaintiffs first felony charges in his life, after explanation of indefinite incarceration until a guilty plea was achieved and denial of any trial whatsoever. This was said by his eighth (documented) court appointed counsel who was

also his second court appointed counsel that had withdrawn from the case previously. In the case of *United States v. McDonald*, 620 F.2d 559 (5th Cir. 1980) this case discusses the potential effects of delays caused by changes in counsel. If these delays are excessive and seem to be intentionally aimed at obtaining a guilty plea or pushing the case towards incarceration, they may violate the defendant's rights under the Sixth Amendment and could be used to challenge unreasonable delays in proceedings.

29. On April 12, 2023 a guilty plea for time served on the Plaintiffs first felony charges that totaled in five felonies in total of burglary, dealing in stolen property, fraud and two counts of aggravated assault with his ninth court appointed lawyer Ms. Michelle Bui helped to convict based on coerce a plea deal against the Plaintiffs best interest violating *Jackson v. Denno*, 378 U.S. 368 (1964) The Supreme Court held that confessions or pleas obtained through coercion, threats, or improper inducements are not admissible and violate due process.
30. Also on April 12, 2023 Plaintiffs co-defendant and mother of his children was booked into the same jail he was just released from in Land o Lakes Florida at the Pasco County Corrections. Further separating family ties. After being released from incarceration the Plaintiff attempted multiple times for a turnover of plea, a Rule 3.850 post-conviction relief and appeal only to be denied in writing by his council and the Honorable Judge. A huge miscarriage of law as defined in *Douglas v. California*, 372 U.S. 353 (1963) , *Smith v. Robbins*, 528 U.S. 259 (2000), *Halbert v. Michigan*, 545 U.S. 605 (2005), and *Evitts v. Lucey*, 469 U.S. 387 (1985) A defendant's right to effective assistance of counsel extends to appeals. If appellate counsel's ineffective representation denies a meaningful appeal, it

violates the Fourteenth Amendment's Due Process Clause. Denial of an appeal, whether due to ineffective assistance or procedural barriers, violates due process..

V. LEGAL CLAIMS

31. Count I: Violation of First Amendment Rights

- a. Retaliation against protected speech defendants violated Plaintiff's First Amendment rights by retaliating against him for exercising his right to a fair trial, seeking legal recourse, advocating for his parental rights and filing formal complaints. As seen in *Pickering v. Board of Education*, 391 U.S. 563 (1968) protects individuals from retaliation for exercising free speech on matters of public concern.
 - i. (Paragraph 30).

32. Count II: Violation of Fourth Amendment Rights Unlawful Arrests, Searches, and Seizure

- a. Defendants conducted unlawful searches, seizures, and arrests by Pasco County without probable cause or due process on December 9, 2020, March 9, 2021 and July 30 2022. As noted in legal precedents *Terry v. Ohio*, 392 U.S. 1 (1968) requires reasonable suspicion for searches and seizures. *Mapp v. Ohio*, 367 U.S. 643 (1961) prohibits the use of unlawfully obtained evidence. *Camara v. Municipal Court*, 387 U.S. 523 (1967) protects against warrantless home searches. *Payton v. New York*, 445 U.S. 573 (1980) requires warrants for home entries absent exigent circumstances. *Fuentes v. Shevin*, 407 U.S. 67 (1972) mandates due process for property deprivation. *Graham v. Connor*, 490 U.S. 386 (1989) applies reasonableness standards to law enforcement actions.

1. (Paragraph 7-8, 9, 12, 18-20, 26)

33. Count III: Violation of Fifth and Fourteenth Amendments Denial of Due Process and Equal Protection

- a. Defendants denied Plaintiff due process and fair legal proceedings, including the permanent removal of his children without justification. Also refusal to file police reports of aggravated assault, attempted lynching and gangstalking. As noted in legal precedents *Goldberg v. Kelly*, 397 U.S. 254 (1970) ensures procedural due process in government actions. *Gideon v. Wainwright*, 372 U.S. 335 (1963) guarantees the right to legal representation. *Stanley v. Illinois*, 405 U.S. 645 (1972) requires due process before depriving parents of custody. *Troxel v. Granville*, 530 U.S. 57 (2000) protects parental rights as fundamental under due process.

1. (Paragraph 13-16, 17, 19-24, 28-29)

34. Count IV: Violation of Sixth Amendment Rights by Denial of Fair Trial and Effective Assistance of Counsel

- a. Defendants denied Plaintiff the right to a fair trial, caused undue delays, appointed ineffective legal counsel and reassigning legal counsel after withdrawal. As found in legal precedents *Strickland v. Washington*, 466 U.S. 668 (1984) establishes standards for effective legal counsel. *Barker v. Wingo*, 407 U.S. 514 (1972) protects the right to a speedy trial. *Jackson v. Denno*, 378 U.S. 368 (1964) prohibits coerced pleas or confessions.

1. (Paragraphs 27-29)

35. Count V: Violation of Eighth Amendment Rights of Cruel and Unusual Punishment

- a. Defendants subjected Plaintiff to gangstalking, electronic harassment, and physical harm, constituting cruel and unusual punishment. As found in legal precedents *Furman v. Georgia*, 408 U.S. 238 (1972) prohibits arbitrary and excessive punishment. *Hope v. Pelzer*, 536 U.S. 730 (2002) prohibits punitive actions that violate due process.

1. (Paragraph 21-22)

36. Count VI: Posse Comitatus Act Violation of Military Involvement in Civilian Matters

- a. Defendants allowed military involvement in civilian law enforcement criminal investigation, used war tactics and technology violating the Posse Comitatus Act. Found in legal precedents *Laird v. Tatum*, 408 U.S. 1 (1972) prohibits unauthorized military surveillance of civilians.

37. Count VII: Human Trafficking and Unlawful Custody Removal.

- a. Defendants deprived Plaintiff of his parental rights through systemic procedural violations that resulted in the complete destruction of a “united estate” within the United States of America under color of law. As noted in legal precedents *Tenenbaum v. Williams*, 193 F.3d 581 (2d Cir. 1999) prohibits child removal without court orders or exigent circumstances. *Moore v. City of East Cleveland*, 431 U.S. 494 (1977) protects the right of families to live together without government interference.

38. Count VIII: Coerced Pleas and Retaliation of Improper Plea Agreements and Threats

- a. Defendants coerced Plaintiff into accepting plea deals under duress and retaliated when he refused. Threats were made as well as serious injuries to Plaintiff and his children occurred as in legal case law *Bordenkircher v. Hayes*, 434 U.S. 357 (1978)

limits coercive tactics in plea bargaining. *Bradley v. McKinney*, 484 F.2d 1368 (9th Cir. 1973) prohibits threats to compel guilty pleas.

39. Count IX: Denial of Access to Appeals

- a. Defendants imposed barriers that denied Plaintiff meaningful access to appellate review as refusing to file appeal by counsel, Honorable Judge refusing rule and hear Pro Se motions or Rule 3.850 post-conviction relief. Described in legal precedents of *Douglas v. California*, 372 U.S. 353 (1963) requires appellate counsel for indigent defendants. *Bounds v. Smith*, 430 U.S. 817 (1977) ensures prisoners' right to access the courts.

40. Count X: Gangstalking and Electronic Harassment

- a. Defendants employed gangstalking and electronic harassment as retaliatory tactics against Plaintiff as cruel and unusual punishment. Even before any judicial hearings took place. As in *Christopher v. Nestlerode*, 373 F.3d 931 (8th Cir. 2004) prohibits law enforcement from using criminal informants to violate constitutional rights.

VI. PRAYER FOR RELIEF

41. Plaintiff demands jury trial and requests that this court declare that Defendants' actions violated Plaintiff's constitutional rights and Federal Law.

- a. Grant injunctive relief to return custody of Plaintiffs children
- b. Grant injunctive relief punishing Defendants for illegal pursuit of unlawful practices and adherence to the guidelines of all Defendants proven guilty to Title 18 Statue 241, 242 and 245.

- c. Grant a complete federal investigation by Federal Bureau of Investigations in regards to past, present and future child removal incidents by Pasco County, Florida asto create a system of checks and balances.
- d. Award Plaintiff reasonable attorney fees and cost pursuant to 42 U.S.C. Statue 1983 and any cost incurred during these proceedings.
- e. Award monetary damages for malicious prosecution, mental anguish, loss of family ties, cruel and unusual punishment, emotional distress, violation of numerous Constitutional Amendments, losses incurred and In the amount of \$100 million
- f. Award punitive damage in the cost of \$10 million per governmental entity and official individual representative involved. That is deemed guilty of violating the above mentioned federal laws and Constitutional Amendments.
- g. Grant any other and further relief as the Court deems just and proper.

Everything stated within this document is, by punishment of perjury, correct and true to the best of my knowledge. Respectfully submitted,

MATTHEW AARON DAVIS

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Date: January 16 2025

UNITED STATES DISTRICT COURT

MIDDLE DISTRICT OF FLORIDA

Tampa Division

DAVIS MATTHEW,

Plaintiff,

v

PASCO COUNTY FLORIDA,

Defendant.

Case No.:

Certificate of Service

CERTIFICATE OF SERVICE

I, Matthew Aaron Davis, hereby certify that on this 16th day of January , 2025, I served a true and correct copy of the following documents:

1. Complaint for Constitutional violations and related crimes (persecution) Title 42 statue 1983, and Title 18 Statue 241, 242 and 245
2. Civil Cover Sheet
3. In Forma Pauperis

Upon the Defendants:

1. Pasco County Florida

I certify that the aforementioned documents have been electronically filed with the Clerk of Court for the United States District Court, Middle District of Florida, via the Clerk of Court, which will send a notice of electronic filing to all counsel of record.

I declare under penalty of perjury, under the laws of the United States of America, that the foregoing is true and correct.

Respectfully submitted,

Matthew Aaron Davis

Pro Se Plaintiff

33404 Brisk Dr

Zephyrhills, FL 33542

Phone: 655-212-3599

Email: DavisMatthewA2024@gmail.com

Date: January 16 2025